

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 22, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Johnson, agenda items #16 & 17 were removed from the Consent Agenda. Mr. White moved to approve remaining items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 8, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, winery and special malt beverage permits) filed with the City Clerk’s Office. There being no comments or input and purpose of the hearing having been met, the applications were referred to Committee of the Whole to be held on March 3, 2021 at 6:00 p.m. at the Cheyenne Civic Center and via electronic conference meeting, and Mayor Collins closed the hearing.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) Section 5.8.4, Fences. Brandon Swain voiced support for the ordinance. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Comment was made related to the proposed allowed 7’ height of privacy fences discouraging people from seeing over them to adjacent areas that may contain debris that needs to be picked up. It was also noted the rationale of increasing privacy fences from 6’ to 7’ is to align with what the International Building Code (IBC) allows and that fences over 6’ require a building permit. Dr. Rinne moved to amend Section 4(a)(2) by changing the fence height from 7’ to 6’, seconded by Mr. Cook. Dr. Rinne noted the reason for the amendment would be to keep fence height the same with what it has been historically and because 7’ fences would require a building permit. Upon inquiry, Charles Bloom, Planning and Development Director, advised that both 6’ and 7’ fences could be a visual barrier and it is up to the governing body to determine what is aesthetically appropriate for neighborhoods. He further noted that different fence heights ranging from 6’-8’ aren’t uncommon in neighborhoods generally and that 7’ fence pickets aren’t available for

purchase but 8' pickets can be purchased and cut down. Mr. Bloom further explained upon inquiry that the proposed setback from side streets is the main scope of the ordinance. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mr. Esquibel and Mr. Segrave voting "no". Main motion as amended carried. Voting "yes" – all members of the governing body.

ORDINANCE –2nd READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the definition, 'Family Unit' and amend the definition of 'Dwelling Unit'. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Concern was expressed related to ordinance timing due to a housing crisis in the community and there not being an efficient way to monitor or enforce the ordinance. Motion carried. Voting "yes" – all members of the governing body with the exception of Dr. Aldrich, Mr. Esquibel and Mr. Laybourn voting "no".

ORDINANCE –2nd READING – Amending various sections of Chapter 12.04, Streets, Sidewalks, and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming. Amber Ash, Downtown Development Authority Director, advised the DDA board met last week and voted to support the ordinance. She further explained she has been working on the ordinance with city staff for several months to find a solution to address downtown sidewalks without putting a burden on property owners. It was noted that one concern is that if a property is located between 2 buildings, there can be issues with meeting DDA requirements. Patti Riesland, Mayor's Council for People with Disabilities, commented on 2 studies conducted in the areas of 16th St. to 24th St. and from Warren to Pioneer that had results indicating an abundance of disrepair between 16th and 19th Streets. She further noted that conditions are causing difficulty for walking in certain areas and there are overall accessibility concerns resulting in negative economic impact as people with disabilities have issues with navigating aspects of downtown streets, sidewalks and curbs. Reporting for Finance Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute submitted February 16, 2021 by the attorney's office, seconded by Mr. White. Alessandra McCoy Fakelman, Deputy City Attorney, explained the substitute includes clarification regarding responsibilities of the city and adjacent property owners noting the city is only responsible for curb and gutter and that language related to liens was also refined. Motion to amend by substitute carried. Voting "yes" – all members of the governing body. Support for the ordinance was expressed. Main motion as amended carried. Voting "yes" – all members of the governing body.

ORDINANCE –1st READING – Pursuant to Section 2.2.2 Planned Development Regulating Plan and Section 5.6.2 PUD-Planned Unit Development District, of the Cheyenne Unified Development Code (UDC) amending Ordinance Number 3741, which established The Village Planned Unit Development (PUD), to allow mixed use business (MUB) District Use on Lot 28 of Block 2 of The Village PUD located southwest of the intersection of Powderhouse Road and Old Town Lane – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending Chapter 5.68, Body Art Establishments and Operations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Dr. Aldrich)

ORDINANCE –1st READING – Amending Section 5.12.150, Suspension or Revocation of License; Denial of Permit, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Cahill Park Addition, Filing No. 5, a replat of Lot 2, Block 1, Cahill Park Addition, Filing No. 4, Cheyenne, Laramie County, Wyoming (located south of and adjacent to Dell Range Boulevard between Windmill Road and Moran Avenue). Motion (per Consent Agenda) carried. (#6123)

[CA] RESOLUTION – Authorizing the sale of surplus city-owned property generally located at the northeast corner of Morrie Avenue and east Lincolnway, together with improvements thereon, and authorizing the Mayor to proceed with sale and transfer of the property. Motion (per Consent Agenda) carried. (#6124)

[CA] RESOLUTION – Calling for an Americans with Disabilities Act Compliance evaluation and transition plan for the City of Cheyenne Municipal Building. Motion (per Consent Agenda) carried. (#6125)

RESOLUTION – Authorizing creation of a Community Technology Advisory Council and Directing the Mayor to appoint the same. Gunnar Malm, County Commissioner, requested clarification on the composition of members of the advisory council. Mayor Collins provided advisory council information explaining he is looking to bring a group of experts together to help him understand what is needed to enhance technology and promote a technology driven environment moving forward for businesses. It was noted that the advisory council will help determine what is needed to make the city's tech community stronger. Mayor Collins further explained it is not anticipated that the advisory council will result in any financial impact. Eric Trowbridge, CEO of Array, spoke in support of the resolution and advisory council and provided information on the broadband task force outlining 7 key recommendations to make sure the city is prepared for the future in technology. Mr. Trowbridge advised it would be ideal that the advisory council deliver information to the governing body on an ongoing basis. Dr. Rinne moved to adopt, seconded by Mr. Segrave. Discussion followed on possible language amendments to clarify the intent of the advisory council providing clarification on the member composition. As sponsor of the resolution, Dr. Aldrich advised she was amenable to proposed amendments as the advisory council is non-binding and may include people that live outside of city limits and noted technology doesn't stop at the city limits. Upon inquiry, Mayor Collins provided additional information on the intent of the advisory council noting it will be a group of individuals with knowledge in the field of technology providing advice for the future of technology. Dr. Rinne moved to amend the 5th "Whereas" paragraph by replacing "residents" with "members" and deleting the remainder of the paragraph, seconded by Dr. Aldrich. Mr. Malm stated he is supportive of the amendment as it clarifies the membership and noted he supports the advisory council. Mr. White suggested a

friendly amendment related to the motion on the floor replacing “residents” with “members” and deleting the remainder of the 8th paragraph. Dr. Rinne accepted the proposed friendly amendment with Dr. Aldrich concurring as second to the motion. (Amendment with friendly amendment: Paragraph 5, replace “residents” with “members” and remove the remainder of the sentence to read: “Whereas, the Community Technology Advisory Council will be comprised of seven (7) members” and in the Be it further Resolved paragraph, replace “residents with “members” and remove “residents from the City of Cheyenne, the County of Laramie and its incorporated towns and cities”). Motion to amend, including the friendly amendment, carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6126)

RESOLUTION – Authorizing creation of an Innovation and Entrepreneur Advisory Council and Directing the Mayor to appoint the same. Dr. Rinne moved to adopt, seconded by Mr. Segrave. Dr. Aldrich explained this is a non-binding advisory council, there is a lot of entrepreneurial activity in the community and many other communities have this type of council. Dr. Aldrich further noted the University of Wyoming has received funding and will partner with LCCC to provide the opportunity to hear from people in many different fields about areas of interest that attract people and keep people in our community. Dr. Rinne moved to amend by replacing “residents” with “members” and deleting the remainder of the paragraph for paragraphs 6 and 9, seconded by Dr. Aldrich. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. As a point of clarification, City Clerk Kris Jones noted agenda item #19 may have inadvertently not been requested to be removed from the agenda, and Mayor Collins explained the item can remain on the agenda. (#6127)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2021 Budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant under the Staffing for Adequate Fire and Emergency Response (SAFER) Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of providing additional staffing – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and BenchMark Engineers, PC for the Walterscheid Boulevard Reconstruction Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$97,794.00). (#7287)

[CA] Agreement between the City of Cheyenne and LuckyDog Recreation, Ashton, ID, for the Pioneer Park Play System Project (Community Development Block Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$216,996.00). (#7288)

[CA] Agreement between the City of Cheyenne and Star Playgrounds, Littleton, CO, for the South Lions Park Play System Project (Community Facility Fees Fund and Land and Water

Conservation Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$249,499.00). (#7289)

[CA] Grant Award Agreement with the State of WY Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2018 in the amount of \$3,418.28 for the Cheyenne Regional Response Team #7 (DHS Grant Code: EMW-2018-SS-00065). Motion (per Consent Agenda) carried. (#7290)

[CA] Section 5307 COVID-19 Emergency Relief for Operations Grant Agreement between the City of Cheyenne and the Federal Transit Administration to fund Transit operations and purchase PPE related to COVID-19 (5307-Emergency Relief Grant) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7134 between the City of Cheyenne and AVI Professional Corporation for construction management services for the Capitol Basin 26th Street Storm Sewer Extension Design Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$316,903.00). (#7134)

[CA] Contract Modification #1 for Renewal and Amendment of Agreement #7033 (Contract #7033) between the City of Cheyenne and Preserve Historic Wyoming, a Wyoming Non-Profit Organization, to remediate hazardous substances to renovate the building located at 1605 Central Avenue, Cheyenne, Wyoming (EPA Revolving Loan Fund) – referred to Finance Committee.

[CA] Contract Modification #8 to Contract #6162 between the City of Cheyenne and CenturyLink Communications, LLC, for modification to the City's Metro Ethernet network servicing outlying offices – referred to Finance Committee.

[CA] Consideration of Bid #S-1-21 for a Contract between the City of Cheyenne and Simon Contractors, for the 24th Street Mill and Overlay Project (2015-2018 and 2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,166,112.15). (#7291)

[CA] Consideration of Bid #S-11-21 for a Contract between the City of Cheyenne and CXT, Inc. an LB Foster Company, Spokane, WA, for the Cheyenne Junior League Pre-Cast Restroom and Concession Building Project (Community Facility Fees and Recreation Mill Grant) – referred to Finance Committee.

[CA] Consideration of Bid #E-13-21 for furnishing eight (8) new four-door 2021 Model Utility (SUV) Police Interceptors, and one (1) 2021 Utility Cargo Vehicle (Van) for the City of Cheyenne, Cheyenne Police Department (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-14-21 for furnishing eight (8) Motorola APX8500 Mobile Radios for the City of Cheyenne, Cheyenne Police Department (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Request to expand retail liquor license premise dimensions for HEJE, Inc. d/b/a Outlaw Liquors, 4503 Western Way, Suite C – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Appointment of Mark G. Francisco as Chief of Police for the City of Cheyenne. Dr. Rinne moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Announcement was made of a Public Hearing to be held Monday, March 8, 2021, at 6:00 p.m. in the Cheyenne Civic Center, 510 W. 20th Street, Cheyenne, Wyoming, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk’s office for Machapuchare Inc. d/b/a Durbar Nepalese & Indian Bistro, 3515 E. Lincolnway, Cheyenne, Wyoming.

Announcement was made of a Public Hearing to be held Monday, March 8, 2021, at 6:00 p.m. in the Cheyenne Civic Center, 510 W. 20th Street, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of Dell Range Boulevard west of Whitney Road.

Announcement was made of a Public Hearing to be held Monday, March 8, 2021, at 6:00 p.m. in the Cheyenne Civic Center, 510 W. 20th Street, Cheyenne, Wyoming, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located north of Dell Range Boulevard east of Griffith Avenue.

Under other business:

Amber Ash, Director of DDA, provided an update on the downtown graffiti abatement program stating removal from buildings with the permission of property owners is in process. She noted the DDA is also working with CoreCivic to apply paint that was provided by the Public Works Department to trash receptacles that have been tagged. It was further advised that Black Hills Energy has also been applying paint to graffiti on their boxes and David Hatch, owner of the Hynds Building, has whitewashed plywood on the Bell Building. She noted that the DDA hopes to be able to install cameras in downtown areas to help curb graffiti activity in the future. Ms. Ash expressed appreciation to Mark Christensen, Planning and Development, for presenting the West Edge Overlay District information to their board. Mayor Collins thanked Ms. Ash for her efforts in supporting downtown. Upon inquiry, Ms. Ash provided information on the mural program and explained generally the murals haven’t historically been tagged and that they provide vibrancy to downtown and help detour graffiti.

Mr. White moved to meet in executive session pursuant to Wyoming Statute §16-4-405(x), for the purpose of a personnel matter related to Collective Labor Bargaining with Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session via private conference call, not open to the public; requested the City Attorney, Deputy City Attorney, City Clerk and City Treasurer be present and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk’s Note: executive session convened at 7:04 p.m.).

Following closure of the executive session, Mayor Collins reconvened the regular meeting at 8:03 p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:03 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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